

Before the
FEDERAL MARITIME COMMISSION

Washington, D.C. 20573

Docket No. 25-02

NIELSEN & BAINBRIDGE, LLC

v.

OCEAN NETWORK EXPRESS PTE. LTD., ORIENT OVERSEAS CONTAINER LINE LIMITED,
OOCL (EUROPE) LIMITED, EVERGREEN LINE JOINT SERVICE AGREEMENT (FMC#011982)
consisting of EVERGREEN MARINE CORP. (TAIWAN) LTD., EVERGREEN MARINE (UK) LIMITED,
ITALIA MARITTIMA SpA, EVERGREEN MARINE (HONG KONG) LTD., EVERGREEN MARINE
(SINGAPORE) PTE. LTD., AND YANG MING MARINE TRANSPORT CORPORATION

JOINT STATUS REPORT

Pursuant to 46 C.F.R. § 502.141(h), Complainant Nielsen & Bainbridge, LLC (“NBG”) and Respondents Ocean Network Express Pte. Ltd. (“ONE”), Evergreen Line Joint Service Agreement (FMC#011982), Evergreen Marine Corp. (Taiwan) Ltd. (“Evergreen Taiwan”), Evergreen Marine (UK) Limited (“Evergreen UK”), Italia Marittima SpA (“Italia”), Evergreen Marine (Hong Kong) Ltd. (“Evergreen Hong Kong”), and Evergreen Marine (Singapore) Pte. Ltd. (“Evergreen Singapore” and collectively with the Evergreen Line Joint Service Agreement, Evergreen Taiwan, Evergreen UK, Italia, and Evergreen Hong Kong, “Evergreen”)¹, and Yang Ming Marine Transport Corporation (“Yang Ming” and, collectively with ONE and Evergreen, the “Respondents”) (NBG, collectively

¹ The Evergreen Respondents are each parties to the Evergreen Line Joint Service Agreement, FMC Agreement No. 011982, and collectively do business under the common trading name Evergreen Line.

with Respondents, the “Parties”),² by their respective undersigned counsel, have met and conferred via videoconference and through email and submit this joint status report regarding the progress of discovery discussions pursuant to the January 17, 2025 Initial Order and in advance of any status conference to be scheduled between the Presiding Officer and the Parties:

Complainant served its Initial Disclosures required by 46 C.F.R. § 502.141(b) on February 10, 2025. By consent of the parties, Evergreen and Yang Ming will serve their respective Initial Disclosures on or before February 19, 2025. The Parties have also initiated discussions with CADRS as of February 12, 2025 regarding mediation, with Complainant and Yang Ming and Complainant and Evergreen holding a preliminary conference via videoconference with CADRS on February 14, 2025.

Based on the meet and confer discussions between the Parties, although the Parties have differences of opinion as to the appropriate course of action with respect to discovery in light of this multi-respondent proceeding and the various motions and/or answers filed by the Respondents, the Parties believe that, if the claims against the various Respondents remain consolidated: (1) collaboration on such a discovery schedule and (2) a unified discovery schedule for all Parties—whenever that may begin—is in the best interests of the proceeding and the resources of both the Federal Maritime Commission, the Administrative Law Judges, and the Parties. The Parties’ views as to discovery are as follows, which the Parties have again endeavored to streamline for the Presiding Officer’s review.

² In response to NBG’s offer to meet and confer regarding this Joint Status Report in which counsel for Complainant requested a meet and confer with counsel for all parties and suggested that “all parties should submit a joint status report by that time, regardless of whether that party has filed an answer in light of the fact that there are no dispositive motions that could prevent the proceeding from moving forward”, counsel for Orient Overseas Container Line Limited and OOCL (Europe) Limited (“OOCL”) wrote “Since OOCL has not filed an answer yet, we are not obligated to meet and confer. We’ll wait until the ALJ rules on our motion to sever and for a more definite statement.” Counsel for OOCL has thus not participated in the preparation of this Joint Status Report. Correspondence attached hereto as **Exhibit A.**

Position of the Complainant

Complainant proposes, based on the fact that no Respondent in this proceeding has filed a fully dispositive motion and that the proceeding will continue as to the remaining parties even after the pending motions by OOCL and ONE have been ruled on, that discovery should not be stayed during the pendency of those motions and should proceed as to all Parties who have appeared. It is Complainant's position that the resolution of those matters will not substantially alter the scope of necessary discovery in this proceeding and that the Parties should continue with such discovery to begin the process and bring discovery to a conclusion in an expedient fashion.

That said, the Complainant agrees with all other Respondents that—should discovery be stayed for some parties—discovery should be stayed for all parties, as proceeding on a joint basis has significant efficiencies as discussed in Complainant's brief in opposition to the pending motions to sever or for a more definite statement. In such an instance, the Complainant would nonetheless request that the Parties, even in the absence of formal written discovery, begin to collaborate on issues such as a Joint Protective Order, a Protocol on Electronically Stored Information, and discussions regarding appropriate custodians, data sources, and possible search terms to guide discovery once it begins in earnest.

Based on the foregoing, if the Presiding Officer agrees with Complainant that discovery should commence prior to a decision on the currently pending motions, Complainant proposes the schedule below, which provides for a discovery schedule in excess of 150 days. The Parties are mindful of the 150-day time period set by 46 C.F.R. § 502.141(g); however, the Parties anticipate that documentary discovery will be extensive, requiring the review of millions of documents and dozens of depositions. Each party will need to collect potentially relevant documents and data from their respective servers and other locations documents, process that data and load it into a database for further review, and, after this initial database has been electronically searched and narrowed,

manually review potentially responsive documents based on the Parties' written discovery requests for responsiveness, confidentiality, and privilege before the documents are prepared for production, all of which will take a significant amount of time.

The Commission's regulations requiring that discovery be completed within 150 days of the service of a respondent's answer may be a reasonable time in a relatively straightforward case; however, it is not realistic for a case of this magnitude in which documentary discovery likely involves tens of millions of documents and dozens of depositions.

The Parties acknowledge that prompt resolution of claims and disputes arising under the statutes administered by the Commission is a laudable goal, one which the deadlines for issuance of initial and final decisions are intended to achieve, and that scheduling orders are an important part of this process. That said, it is not unusual for the deadlines for completion of discovery and/or for the issuance of initial and final decisions to be extended by presiding officers and the Commission in order to afford the Parties adequate and reasonable time to fulfill the discovery obligations necessary for the Parties to develop their claims and defenses.

There are also policy considerations which favor allowing sufficient time for the full development of the evidentiary record before an agency. *Hudson Shipping (Hong Kong) Ltd. d/b/a Hudson Express Lines – Possible Violations of Section 10(a)(1) of the Shipping Act of 1984*, 29 S.R.R. 1376, 1377 (ALJ 2002) (policy and responsibility of Commission and, by delegation of authority, presiding judge, to inquire into and consider all relevant facts; of even greater importance than the concept of fairness between the parties, as they maneuver to develop a record which fits their positions, is the need to ensure that justice is served and all relevant facts are considered by the Commission).

In light of the above, if the Presiding Officer is to order that discovery begin during the pendency of the present pre-answer motions, the Parties will work diligently with the goal of

completing discovery in a timely and efficient manner and believe that good cause has been demonstrated to modify the 150-day deadline provided for under 46 C.F.R. § 502.141(g) and Complainant proposes the following deadlines for discovery should the Presiding Officer order that discovery begin at this time:

EVENT	PROPOSED DEADLINE
Parties to serve initial requests for production (“RFPs”) of documents and electronically stored information (“ESI”) and interrogatories	March 7, 2025
Parties to serve objections and initial responses to initial RFPs	April 4, 2025
Parties to serve objections and initial responses to initial interrogatories	April 4, 2025
Submission of any unresolved disputes concerning initial RFPs and interrogatories and objections and responses thereto (after counsel confer directly)	April 25, 2025
Substantial completion of productions of documents and ESI in response to initial RFPs	June 20, 2025
Parties to File Joint Status Report	July 11, 2025
Complete depositions of fact witnesses	August 22, 2025
Last day to serve interrogatories, requests for admission, and RFPs	August 22, 2025
Disclosure of initial expert reports, if any	September 19, 2025
Disclosure of rebuttal expert reports, if any	October 17, 2025
Complete expert depositions	November 14, 2025
Close of discovery	November 14, 2025
Complainant’s initial brief(s), proposed findings of fact, and appendix	December 19, 2025
Respondents’ opposition briefs, responses to proposed findings of fact, proposed findings of fact, and appendix	January 23, 2026
Complainant’s reply and responses to proposed findings of fact	February 20, 2026

The Parties do not currently anticipate needing depositions or interrogatories in this case in excess of the amounts contemplated by 46 C.F.R. §§ 502.143 (i.e., no more than 20 depositions per party) and 502.145 (i.e., no more than 50 written interrogatories per party), respectively.

Position of the Respondents

1. Position of Respondent Ocean Network Express Pte. Ltd. (“ONE”)

Respondent ONE is contributing to this joint status report without prejudice to its position that it is under no obligation to do so. The filing of the initial joint status report is tied to the filing of an answer. Since Respondent ONE has filed a motion in response to the Complaint and has not yet filed an answer, it is under no obligation to submit a joint status report or begin the CADRS process.

More specifically, Respondent ONE’s motion to sever and for a more definite statement of claims is based on the fact that Complainant EDI has erroneously sought to litigate unrelated claims against unrelated carriers in a single proceeding. The net result is that all of the Respondents are forced to deal with unnecessarily complicated and confusing claims. Proceeding with discovery will only improperly enhance and multiply the burden on Respondent ONE and the other Respondents. Respondent ONE also notes that the underlying basis of the pending motions to stay filed by the other Respondents could ultimately impact all of the respondents.

Accordingly, it is also the position of Respondent ONE that no discovery should take place in this proceeding until after there has been rulings on all the pending motions and, if stay motions are granted, until such time as the stay of this proceeding has been lifted.

With respect to Complainant’s proposed discovery schedule, the obligation to agree on a schedule attaches only after an answer to the complaint has been filed. *See* 46 C.F.R. 502.141(h). Since Respondent ONE has not yet filed an answer, ONE is under no obligation to agree to a procedural schedule and respectfully decline to agree to Complainant’s proposed schedule at this time. Again, Complainant EDI chose to name multiple respondents in a single action. Complainant EDI should not be permitted to use the answers filed by some respondents to force other respondents to agree to a procedural schedule sooner than required by the Commission’s Rules of Practice and Procedure.

2. Positions of Respondents Evergreen Line and Yang Ming

Evergreen Line (“Evergreen”) and Yang Ming (“YM”) agree with the position of Respondent ONE, as above, in respect to the stay of discovery and severance of the multiple Respondents into discrete actions. The procedural distinction between Respondent ONE and Evergreen/YM is technical, not one going to the substance of the positions outlined. Evergreen/YM could, for example, file motions to place themselves in effectively the same position as Respondent ONE above. Necessarily, any decision as to Respondent ONE on the specificity of the Complaint or severance must apply as well to Evergreen/YM

On the substance, the Complaint is both fatally unspecific as to Evergreen/YM and includes parties from which Evergreen/YM should each be severed, and each severed from the other as well, all as more fully explained in the positions above outlined and filed motions in the highly similar matter FMC 25-03 - EDI v. MSC et al. in which motions have been filed by similarly situated Respondents. The position of those moving Respondents and ONE in the subject matter offers an economy of both the Commission’s time and resources as well as the individual Respondents involved. It would be wasteful at a very meaningful level to have discovery proceed until the crucial issues of the Complaint’s specificity and severance of the Respondents are resolved. It is simply wrong to suggest that a more specific Complaint identifying clearly articulated issues and facts would not favorably impact the discovery burdens imposed on Evergreen/YM; in contrast to the present Complaint, uncertain as it is, as to facts and causes of action. Similarly, the improper entanglement of Evergreen/YM with each other and/or ONE or any other Respondent just as a matter of common sense, must necessarily greatly broaden the discovery burden of each Respondent. Equally, as above noted, other proceedings, including US Federal Appellate Court decisions on core issues in the case at bar are imminent. As noted by MSC and two other respondents in the mentioned similar action,. “Having said this, these three respondents have moved that this

proceeding be stayed until final decisions have been issued in other, pending court and agency proceedings. It is the position of these three respondents that the rulings in such other proceedings have the potential to impact the scope of this proceeding significantly. For example, should the Court of Appeals rule that the failure of a carrier to provide space under a service contract is a breach of contract over which the Commission lacks jurisdiction, or overturn the Commission's decision on remand in *TCW v. Evergreen*, such a ruling would significantly impact the scope of this proceeding and necessarily impact the scope of discovery being sought." FMC 25-03 - EDI v. MSC et al. Waiting for same would work no prejudice to Complaint which took over three years past the events at issue to file a Complaint. For all those reasons proceeding with discovery before resolution of the fundamental issues discussed makes no sense and would be a significant waste of judicial resources and the resources of likely all the Respondents and certainly Evergreen/YM.

Should the above Evergreen/YM position not be agreed to by the Presiding Officer then Evergreen/YM is in general agreement with the positions taken by the Complainant regarding the unified handling of discovery deadlines and that the 150-day deadline for discovery makes little sense in the context of the present Complaint. The proposed schedule offered by the Complainant is generally reasonable under the circumstances for the reasons set forth by the Complainant.

Dated: February 18, 2025

Respectfully submitted,

HUTH REYNOLDS LLP

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*Counsel for Respondent Ocean Network
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Exhibit A

Tuesday, February 18, 2025 at 17:55:03 Eastern Standard Time

Subject: RE: NBG v. ONE et al., FMC Dkt. No. 25-02, NBG's Initial Disclosures
Date: Tuesday, February 11, 2025 at 07:42:14 Eastern Standard Time
From: Letourneau, Keith
To: Gregory Crapanzano, Garth Wolfson, Ed Keane, Steven M. Stancliff, James Levantino, Eric Jeffrey, Rebecca Fenneman, Kaya Massey, Nick Webb, Thomas, Matthew J.
CC: Matthew Reynolds, Karl Huth, Mohini Priya, Caden Otunu
Attachments: image001.png

Good morning, Greg,

Since OOCL has not filed an answer yet, we are not obligated to meet and confer. We'll wait until the ALJ rules on our motion to sever and for a more definite statement.

Best regards,

Keith

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From: Gregory Crapanzano <gcrapanzano@huthreynolds.com>
Sent: Monday, February 10, 2025 7:16 PM
To: Garth Wolfson <gwolfson@mahoneykeane.com>; Ed Keane <ekeane@mahoneykeane.com>; Steven M. Stancliff <sstancliff@ventkerlaw.com>; James Levantino <jlevantino@ventkerlaw.com>; Eric Jeffrey <EJeffrey@jeffreyfenneman.com>; Rebecca Fenneman <rfenneman@jeffreyfenneman.com>; Kaya Massey <KMassey@JeffreyFenneman.com>; Nick Webb <nwebb@jeffreyfenneman.com>; Letourneau, Keith <keith.letourneau@blankrome.com>; Thomas, Matthew J. <matthew.thomas@blankrome.com>
Cc: Matthew Reynolds <reynolds@huthreynolds.com>; Karl Huth <huth@huthreynolds.com>; Mohini Priya <Mpriya@huthreynolds.com>; Caden Otunu <cotunu@huthreynolds.com>
Subject: NBG v. ONE et al., FMC Dkt. No. 25-02, NBG's Initial Disclosures

Counsel,

Attached please find Complainant NBG's Initial Disclosures in the above-captioned case.

Additionally, we would like to meet and confer to discuss the January 17, 2025 Initial Order's directives that the parties, within 15 days of the service of an answer, (1) participate in a preliminary conference with CADRS and (2) submit a Joint Status Report with a proposed discovery schedule for discovery. It is Complainant's position that all parties should participate in a preliminary conference by February 18 (we are open to individual conferences if respondents do not want to participate in joint conferences) and that all parties should submit a joint status report by that time, regardless of whether that party has filed an answer in light of the fact that there are no dispositive motions that could prevent the proceeding from moving forward. We believe that this is contemplated by the Initial Order and is the most efficient path forward.

We can be available at your convenience to discuss the above,

Best,

Greg

Huth Reynolds	L L P	Gregory A. Crapanzano II <i>Senior Counsel</i> Huth Reynolds LLP huthreynolds.com (917) 575-3440 gcrapanzano@huthreynolds.com
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CERTIFICATE OF SERVICE

I hereby certify that I have this day served the foregoing document upon Respondents Ocean Network Express Pte. Ltd. (“ONE”), Orient Overseas Container Line Limited, OOCL (Europe) Limited (together with Orient Overseas Container Line Limited, “OOCL”), Evergreen Line Joint Service Agreement (FMC#011982), Evergreen Marine Corp. (Taiwan) Ltd. (“Evergreen Taiwan”), Evergreen Marine (UK) Limited (“Evergreen UK”), Italia Marittima SpA (“Italia”), Evergreen Marine (Hong Kong) Ltd. (“Evergreen Hong Kong”), and Evergreen Marine (Singapore) Pte. Ltd. (“Evergreen Singapore” and collectively with the Evergreen Line Joint Service Agreement, Evergreen Taiwan, Evergreen UK, Italia, and Evergreen Hong Kong, “Evergreen”), and Yang Ming Marine Transport Corporation by emailing a copy to their counsel of record listed below:

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Dated: February 18, 2025

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